

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR ENGROSSED

SENATE BILL NO. 169

By: Hall, Haste, and Goodwin of
the Senate

and

Kane of the House

COMMITTEE SUBSTITUTE

An Act relating to state government; amending 74 O.S. 2021, Section 840-2.18, as last amended by Section 1, Chapter 18, 1st Extraordinary Session, O.S.L. 2023 (74 O.S. Supp. 2025, Section 840-2.18), which relates to longevity pay; increasing longevity amounts for certain state employees; updating statutory language; updating statutory references; and providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 74 O.S. 2021, Section 840-2.18, as last amended by Section 1, Chapter 18, 1st Extraordinary Session, O.S.L. 2023 (74 O.S. Supp. 2025, Section 840-2.18), is amended to read as follows:

Section 840-2.18. A. A longevity pay plan is hereby adopted. This plan applies to all state employees, excluding members of boards and commissions, institutions under the administrative authority of the Oklahoma State Regents for Higher Education,

1 employees of public school districts, and elected officials. The
2 plan shall also apply to those employees of the Oklahoma School for
3 the Blind and the Oklahoma School for the Deaf who qualify for
4 longevity pay in accordance with subsection G of Section 1419 of
5 Title 10 of the Oklahoma Statutes.

6 B. The Oklahoma Conservation Commission is hereby authorized to
7 establish a longevity pay program for employees of the conservation
8 districts employed under Section 3-3-103 of Title 27A of the
9 Oklahoma Statutes. Such longevity pay program shall be consistent
10 with the longevity pay program for state employees authorized under
11 this title and payments shall be made in a manner consistent with
12 procedures for reimbursement to conservation districts.

13 C. To be eligible for longevity pay, employees must have been
14 continuously employed in the service of the state for a minimum of
15 two (2) years in full-time status or in part-time status working
16 more than one thousand (1,000) hours a year.

17 For purposes of this section, a break in service of thirty (30)
18 calendar days or less shall not be considered an interruption of
19 continuous service; a break in service of more than thirty (30)
20 calendar days shall mark an end to continuous service. The
21 legislative session employees who have worked for two (2) years or
22 more in part-time status and are eligible for state retirement
23 benefits, but do not receive other longevity payments, shall be
24 eligible and shall be considered to have been continuously employed

1 for purposes of calculating longevity payments, notwithstanding the
2 provisions of subsection E of this section.

3 D. 1. Longevity pay for the first twenty (20) years of service
4 shall be determined pursuant to the following schedule:

5	Years of Service	Annual Longevity Payment
6	At least 2 years but	
7	less than 4 years	\$250.00 <u>\$375.00</u>
8	At least 4 years but	
9	less than 6 years	\$426.00 <u>\$639.00</u>
10	At least 6 years but	
11	less than 8 years	\$626.00 <u>\$939.99</u>
12	At least 8 years but	
13	less than 10 years	\$850.00 <u>\$1,275.00</u>
14	At least 10 years but	
15	less than 12 years	\$1,062.00 <u>\$1,593.00</u>
16	At least 12 years but	
17	less than 14 years	\$1,250.00 <u>\$1,875.00</u>
18	At least 14 years but	
19	less than 16 years	\$1,500.00 <u>\$2,250.00</u>
20	At least 16 years but	
21	less than 18 years	\$1,688.00 <u>\$2,532.00</u>
22	At least 18 years but	
23	less than 20 years	\$1,900.00 <u>\$2,850.00</u>
24	At least 20 years	\$2,000.00 <u>\$3,000.00</u>

1 2. For each additional two (2) years of service after the first
2 twenty (20) years an additional ~~Two Hundred Dollars (\$200.00)~~ Three
3 Hundred Dollars (\$300.00) shall be added to the amount stated above
4 for twenty (20) years of service.

5 The total amount of the annual longevity payment made to an
6 employee by any and all state agencies in any year shall not exceed
7 the amount shown on the table corresponding to that employee's years
8 of service with the state, ~~except as otherwise provided by Section~~
9 ~~840-2.28 of this title.~~ Further, no employee shall receive
10 duplicating longevity payments for the same periods of service with
11 any and all agencies, ~~except as otherwise provided by Section 840-~~
12 ~~2.28 of this title.~~

13 E. To determine years of service, cumulative periods of full-
14 time employment or part-time employment working more than one
15 hundred fifty (150) hours per month with the state excluding service
16 as specified in subsection A of this section are applicable. Part-
17 time employment, working one hundred fifty (150) hours per month or
18 less for the state, excluding service as specified in subsection A
19 of this section, shall be counted only if:

20 1. The period of employment was continuous for at least five
21 (5) months; and

22 2. a. The person worked more than two-fifths (2/5) time.

23 Other employment shall not be counted as service for purposes of
24 longevity payments. Further, no period of employment with the

1 state, whether with one or more than one agency, shall be counted as
2 more than full-time service.

3 b. For purposes of the computation required by this
4 section, any service performed by a person during
5 which the person received compensation for duties
6 performed for the state shall be counted if payment
7 for such service was made using state fiscal
8 resources. The provisions of this ~~paragraph~~
9 subparagraph shall not apply to elected or appointed
10 justices or judges, including special judges, who
11 perform services in the trial or appellate courts.
12 The provisions of this section shall apply to persons
13 who perform services as an administrative law judge
14 within the executive department and employees of the
15 judicial branch.

16 F. Years of service under the administrative authority of the
17 Oklahoma State Regents for Higher Education or the administrative
18 authority of the Oklahoma Department of Career and Technology
19 Education of any employee who is now employed in a job
20 classification which is eligible for longevity pay shall be included
21 in years of service for purposes of determining longevity pay.

22 G. Years of service shall be certified through the current
23 employing agency by the appointing authority on a form approved by
24 the Office of Management and Enterprise Services. The form shall be

1 completed and posted as directed by the Director of the Office of
2 Management and Enterprise Services by the current employing agency
3 when the employee initially enters on duty with the agency and
4 thereafter whenever the employee's anniversary date is changed.

5 H. Eligible employees, in full-time status or in part-time
6 status working more than one hundred fifty (150) hours per month,
7 shall receive one (1) lump-sum annual payment, in the amount
8 provided on the preceding schedule, during the month following the
9 anniversary date of the employee's most recent enter-on-duty day
10 with the state. Upon implementation of the statewide information
11 systems project, the lump-sum annual payment may be paid concurrent
12 with the final payroll of the month of the employee's anniversary
13 date. Eligible part-time employees who work one hundred fifty (150)
14 hours per month or less shall receive one (1) lump-sum annual
15 payment, based on the formula in subsection L of this section,
16 during the month following the anniversary date of the employee's
17 most recent enter-on-duty day with the state. To receive longevity
18 pay an employee must be in pay status on or after his or her
19 anniversary date.

20 Eligible employees who would not otherwise receive annual
21 longevity payments because their employment includes regular periods
22 of leave without pay in excess of thirty (30) calendar days shall
23 receive one (1) lump-sum annual payment, based on the formula in
24 subsection L of this section, during:

1 1. The month of August if the employee is in pay status on July
2 1; or

3 2. During the month following the employee's first return to
4 duty that fiscal year if the employee is not in pay status on July
5 1.

6 ~~Except as otherwise provided by Section 840-2.28 of this title,~~
7 ~~employees~~ Employees terminated as a result of a reduction-in-force
8 or retiring from state employment shall receive upon ~~said~~ such
9 termination or retirement the proportionate share of any longevity
10 payment which may have accrued as of the date of termination or
11 retirement. Provided further, that, ~~that~~, the proportionate share of any
12 longevity payment which may have accrued as of the date of death of
13 an employee shall be made to the surviving spouse of the employee or
14 if there is no surviving spouse to the estate of the employee.

15 I. Periods of leave without pay taken in accordance with
16 Section 840-2.21 of this title shall be counted as service. Other
17 periods of nonpaid leave status in excess of thirty (30) calendar
18 days shall not mark a break in service; however, they shall:

19 1. Not be used in calculating total months of service for
20 longevity pay purposes; and

21 2. Extend the anniversary date for longevity pay by the total
22 period of time on nonpaid leave status except as provided in
23 subsection H of this section for employees whose conditions of
24 employment include regular periods of leave without pay.

1 J. Employees currently receiving longevity pay who work for the
2 Oklahoma Department of Career and Technology Education shall not be
3 eligible for the longevity pay plan provided for in this section.

4 K. A break in service with the state in excess of thirty (30)
5 days but which does not exceed two (2) years which was caused by a
6 reduction-in-force shall be treated as if it were a period of
7 nonpaid leave status as provided for in subsection I of this section
8 for the purpose of calculating total months of service for longevity
9 pay. This subsection shall only apply to state employees laid off
10 after June 30, 1982.

11 L. Eligible part-time employees working less than one hundred
12 fifty (150) hours per month and other eligible employees with
13 regular annual periods of leave without pay of more than thirty (30)
14 calendar days will receive a prorated share of the "Annual Longevity
15 Payment" authorized in subsection D of this section. The prorated
16 amount of payment will be based on actual hours worked in the
17 immediately preceding twelve (12) months.

18 M. An employee shall not be entitled to retroactive longevity
19 payments as a result of amendments to this section unless
20 specifically authorized by law.

21 N. The Director of the Office of Management and Enterprise
22 Services is authorized to promulgate such ~~Longevity Pay Plan Rules~~
23 longevity pay plan rules as he or she finds necessary to carry out
24 the provisions of this section.

1 O. As of July 1, 1998, years of service with a city-county
2 health department for employees who left a city-county health
3 department for employment with the Department of Environmental
4 Quality or the Oklahoma Department of Agriculture, Food, and
5 Forestry, between July 1, 1993, and July 1, 1998, and who are now
6 employed in a job classification that is eligible for longevity pay
7 pursuant to this section, shall be included in years of service for
8 purposes of determining longevity pay subsequent to July 1, 1998.

9 P. As of July 1, 2003, years of service with a local
10 conservation district shall be included in years of service for
11 purposes of determining longevity pay for local conservation
12 district employees transferred to the Oklahoma Conservation
13 Commission pursuant to the provisions of this section.

14 SECTION 2. This act shall become effective July 1, 2026.

15 SECTION 3. It being immediately necessary for the preservation
16 of the public peace, health or safety, an emergency is hereby
17 declared to exist, by reason whereof this act shall take effect and
18 be in full force from and after its passage and approval.

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